The Future is Now:

Practical Considerations and Developments at the Intersection of Litigation and Generative AI

Commercial and Litigation Section Annual Meeting

January 14, 2026

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Roadmap

- Duty of Technological Competence
- High-Level Definitions
- Generative AI Use Cases in Litigation Practice
- Case Scenario – Trade Secrets Case

Duty of Technological Competence

- To maintain the requisite knowledge and skill, a lawyer should keep abreast of changes in the law and its practice, ***including the benefits and risks associated with relevant technology***, engage in continuing study and education and comply with all continuing legal education requirements to which the lawyer is subject.

Comment 8 to A.B.A. MPRC 1.1

Duty of Technological Competence

- To remain proficient and competent in the practice of law, lawyers must have a basic understanding of the technology and terminology used in AI.

Hon. Xavier Rodriguez, Artificial Intelligence (AI) and the Practice of Law, 24 SEDONA CONF. J. 783 (forthcoming 2023) ("*Rodriguez*").

ABA Formal Opinion 512 (July 29, 2024)
Competence (Model Rule 1.1)

- [L]awyers should either acquire a reasonable understanding of the benefits and risks of the GAI tools that they employ in their practices or draw on the expertise of others who can provide guidance about the relevant GAI tool's capabilities and limitations.
- A lawyer's reliance on, or submission of, a GAI tool's output—without an appropriate degree of independent verification or review of its output—could violate the duty to provide competent representation as required by Model Rule 1.1.

Artificial Intelligence

- AI "refers to computer systems and applications that are capable of performing functions normally associated with human intelligence, such as abstracting, reasoning, problem solving, learning, etc."

Rodriguez, at 788 & n.17; *see also* International Definitions of Artificial Intelligence, INTERNATIONAL ASSOCIATION OF PRIVACY PROFESSIONALS (Sept. 2023)

Generative AI

- "Generative AI is a specific subset of AI used to create new content based on training on existing data taken from massive data sources in response to a user's prompt, or to replicate a style used as input. The prompt and the new content may consist of text, images, audio, or video."

Rodriguez, at 789 & n.21 (citing Maura Grossman, Paul Grimm, Daniel Brown & Molly Xu, The GPTJudge: Justice in a Generative AI World, 23 DUKE LAW & TECH. REV. 8 (forthcoming Oct. 2023), available at https://ssrn.com/abstract=4460184).

Large Language Models

- A large language model (LLM) is a specialized type of artificial intelligence (AI) that has been trained on vast amounts of text to understand existing content and generate original content.

Gartner Glossary

Ever-Expanding Array of Gen AI Use Cases in Litigation Practice

- Legal Research and Drafting
- Early Case Assessment and eDiscovery Document Analysis
- Client Communications
- Client Chatbots and Agents

Vignette 1: Theft of Trade Secrets by Departing Developer

- Use of Gen AI for Drafting and Research
- Preservation of Gen AI Content
- Use of Gen AI by In-House Legal Team
- Use of Gen AI by Development Team

▸ ABA Formal Opinion 512 *Communication (Model Rule 1.4)*

- Model Rule 1.4(a)(2) states that a lawyer shall "**reasonably consult with the client about the means by which the client's objectives are to be accomplished**."
- Clients would need to be informed in advance, and to give informed consent, if the lawyer proposes to input information relating to the representation into the GAI tool.
- Lawyers must also consult clients when the use of a GAI tool is relevant to the basis or reasonableness of a lawyer's fee.

ABA Formal Opinion 512
Fees (Model Rule1.5)

- Lawyer must explain **before** charging the client for the use of the GAI tools.
- Lawyer may only bill for **actual time** expended on an hourly basis engagement.
- For flat fee arrangement, if using a GAI tool enables a lawyer to complete tasks much more quickly than without the tool, it may be unreasonable under Rule 1.5 for the lawyer to charge the same flat fee.

Vignette 2: Use of Gen AI in Case Preparation

- Early Case Assessment
- Analysis of Sensitive Data Taken by Former Employee
- Measures Employed to Protect Sensitive Information
- Use of Gen AI by In-House Team in Providing Legal Advice to Business Team

Vignette 3: Gen AI Use Case Demo

- Privilege Log Drafting
- Timelines/Chronologies
- Relevancy/Responsiveness Determinations
- Hot Document Identification & Summarization
- Deposition Preparation / Key Questions
- Automated Prompt Drafting

Vignette 4: Case Management Conference

- Complaint Filed
- Initial Disclosures Exchanged
- Opposing Counsel Meet and Confer
- Proposed Protocol for Use of Gen AI for Document Review
- Protective Order to ensure confidential information is secure

ABA Formal Opinion 512
Confidentiality (Model Rule 1.6)

- Obligation to maintain confidentiality of all information relating to the representation (**unless the client provides informed consent**).
- Before inputting information into a GAI tool, lawyers must evaluate the risks that the information will be disclosed to or accessed by others outside (**or inside**) the firm.
- Because GAI tools differ in their ability to protect confidential information, the **required risk analysis** will be fact-driven and depends on the client, the matter, the task, and the GAI tool used to perform it.

Vignette 5: Hallucinations in Court Submissions

- Katy determines that defense counsel submitted a filing rife with hallucinated cases (both nonexistent and cases for different propositions)
- Extenuating personal circumstances for supervising defense counsel
  - Used enterprise legal Gen AI tool
  - Firm has robust Gen AI use policy
  - Lapse caused in part by new summer associate not fully versed

ABA Formal Opinion 512
Meritorious Claims and Candor (Model Rules 3.1, 3.3 & 8.4)

- Output from a GAI tool must be carefully reviewed to ensure that the assertions made to the court are not false.

- Issues that have arisen to date with lawyers' use of GAI outputs include citations to nonexistent opinions, inaccurate analysis of authority, and use of misleading arguments.

ABA Formal Opinion 512

Supervisory Responsibilities (Model Rules 5.1& 5.3)

- Managerial lawyers must establish clear policies regarding the law firm's permissible use of GAI, and supervisory lawyers must make reasonable efforts to ensure that the firm's lawyers and nonlawyers comply with their professional obligations when using GAI tools.

- With respect to outside Gen AI vendors, lawyers must ensure, that the third party will do the work capably and protect the confidentiality of information relating to the representation.

Mata v. Avianca, Inc. (Castel, J.)

- Judge Castel found subjective bad faith in imposing sanctions.
- Counsel did not verify case cites, swore to truth of affidavit without any inquiry
- Unadmitted counsel was aware that cited cases were non-existent, compounded by untruthful assertions to the Court.
- Ordered respondent attorneys, *inter alia:*
  - To send a letter to each judge falsely identified as the author of the fake opinions.

Profusion of AI Hallucination Cases Since *Mata*

- AI Hallucinations Database
  - **712 cases worldwide** (as of 12/28/2025)
  - **484 U.S. cases** (as of 12/28/2025)

Judge Wicks Shows Lenience to Overtaxed Lawyer

- While the Court is aware of the serious implications that the misuse of AI-generated non-existent caselaw presents, it is also mindful of the circumstances here which do not support any finding of bad faith, as well as the remorseful explanations proffered by counsel who experienced one of life's unspeakable tragedies. It is for these reasons that the Court in the exercise of its discretion, declines to impose sua sponte monetary sanctions upon counsel for Plaintiff.
  - https://hr.cch.com/ELD/HallAcademy080725.pdf

- **Confronted with AI hallucinations in filings, one court shows 'justifiable kindness,' while another gets tough**

AI's Black Box Effect

- Whatever ChatGPT has learned is encoded in hundreds of billions of internal weights, and ***it's impossible to make sense of the AI's decision-making by simply examining those weights***. Simply put, this is the so-called "black box" phenomenon.
- The selection of training data, as well as other training decisions, is [initially] human controlled. However, as AI becomes more sophisticated, the computer itself becomes capable of processing and evaluating data beyond programmed algorithms through contextualized inference, creating a 'black box' effect ***where programmers may not have visibility into the rationale of AI output or the data components that contributed to that output***.

Rodriguez, at 803 & n.57.

The "GIGO" Problem

- "[M]achine-learning algorithms are trained using historical data, [thus] they can serve to perpetuate the very biases they are often intended to prevent. Bias in training data can occur because the training data is not representative of a target population to which the AI system will later be applied."

Rodriguez, at 792-93.

Prevalence of Algorithmic Bias

An Asian MIT student asked AI to turn an image of her into a professional headshot. It made her white, with lighter skin and blue eyes, BUSINESS INSIDER (Aug. 16, 2023).

Eleventh Circuit Judge Explores Pros and Cons of Use of Gen AI

- *Snell v. United Specialty Insurance Co.*, 102 F.4th 1208 (11th Cir. 2024) (Newsom, J., concurring).
  - Circuit Judge Kevin C. Newsom used Gen AI to assist in ordinary meaning analysis of key term "**landscaping**" in insurance coverage dispute.

  - "Those, like me, who believe that 'ordinary meaning' is the foundational rule for the evaluation of legal texts should consider— consider—whether and how AI-powered large language models like OpenAI's ChatGPT, Google's Gemini, and Anthropic's Claude might—might—inform the interpretive analysis."

11th Circuit Judge Admits to Using ChatGPT to Help Decide a Case, Losey AI Blog (June 6, 2024).

Judge Newsom Doubles Down on Use of Gen AI in *U.S. v. DeLeon*

- Circuit Judge Kevin C. Newsom used Gen AI tools to assist in ordinary meaning analysis of "key term "physically restrained" in sentencing enhancement based on use of gun in armed robbery without any physical contact
  - Despite variations in responses between responses from OpenAI's ChatGPT, Google's Gemini, and Anthropic's Claude--and across prompts within the same LLM—Judge Newsom found that the "LLMs consistently defined the phrase "physically restrained" to require the application of tangible force, either through direct bodily contact or some other device or instrument might—might—inform the interpretive analysis."

11th Circuit Experiment Holds Useful Lessons on the Use of Generative AI *discussing U.S. v. Jones, No. 23-10478,* slip op. at 9-12, available at https://fingfx.thomsonreuters.com/gfx/legaldocs/jnpwanznepw/09062024newsom.pdf.

Georgia Judge Falls Prey To Hallucinated Cases

- *Shahid v. Esaam* (July 2025) out of the Georgia Court of Appeals, involved a final judgment and decree of divorce served by publication. When the wife objected to the judgment based on improper service, the husband's brief included two fake cases. The trial judge accepted the husband's argument, issuing an order based in part on the fake cases. Overturned on appeal.

Potential Issues with Judges' Use of Gen AI

- Implicates ABA Model Code of Judicial Conduct Rule 2.9(C) ("A judge shall not investigate facts in a matter independently and shall consider only the evidence presented and any facts that may properly be noticed");

- Using the GenAI system for independent research without informing counsel or providing them with an opportunity to object to arguments that are not in the record, may very well expose the Court to sources of information that have not been put in evidence by the parties, or that raise other due process issues

Grossman, et al., The GPTJudge: Justice in a Generative AI World, 23 DUKE LAW & TECH. REV. 8 (Oct. 2023), available at https://ssrn.com/abstract=4460184).

Recent Guidance from Sedona Conference

- *Navigating AI in the Judiciary: New Guidelines for Judges and Their Chambers*, 26 SEDONA CONF. J. 1 (2025):
- Strengthen independence, integrity and impartiality
- Cognizance of extrajudicial information and influences
- Cognizance of limitations of Gen AI:
  - does not engage in traditional reasoning
  - Overreliance undermines human judgment at heart of judicial decision-making
- Cognizance of automation and confirmation bias
- Judicial officers are responsible so verification of work product is required

Recent Guidance from Sedona Conference – Supportable Use Cases

- *Navigating AI in the Judiciary: New Guidelines for Judges and Their Chambers*, 26 SEDONA CONF. J. 1 (2025):
- Legal Research
- Drafting Routine Administrative Orders
- Search and Summarize
- Creation of Timelines
- Editing and Proofreading
- Vetting Legal Authority in Party Filings

Questions / Comments?